

April 26, 2024

Agency for the Protection of Personal Data, as an independent supervisory body responsible for monitoring the application of the General Data Protection Regulation, issues recommendations for the upcoming elections of members to the European Parliament from the Republic of Croatia regarding the processing of personal data that political parties, candidates, or election participants must respect during electoral campaigning, in order to ensure that the processing of personal data of all election participants, especially voters, is in accordance with the legislative framework for the protection of personal data.

We emphasize that based on Article 29, paragraph 3 of the Law on the Election of Members to the European Parliament from the Republic of Croatia (NN 92/10, 23/13, and 143/13), the State Election Commission has issued Mandatory Instructions No. EP II on the protection of personal data (NN 33/2024), which clearly stipulates who is the data controller, the purpose and processing of personal data during the conduct of elections, the types of personal data processed during the elections, the competent authority for verifying the accuracy of personal data, the duration of personal data processing, and the public disclosure of personal data.

Regarding electoral campaigning from the perspective of personal data protection, for the purposes of advertising and sending personalized messages to voters, political parties/candidates can generally rely on the consent of voters or on legitimate interest. For example, if a voter is a supporter or a member of a particular political party and/or its donor, they can expect to receive personalized messages from that party, meaning the political party has a legitimate interest in sending such messages. However, invoking legitimate interest cannot be done arbitrarily; the data controller (political party) must demonstrate this by conducting a proportionality test prior to processing personal data, in which it will thoroughly assess whether the rights to process personal data by the data controller outweigh the rights to the protection of personal data of voters.

It is important to emphasize that in addition to other rights under the General Data Protection Regulation, a voter has the right to object at any time to such processing of their personal data, or they can object to receiving messages, regardless of whether they have given consent or whether the political party has a legitimate interest in processing their personal data. This right of voters must be communicated clearly and separately from all other information, and it is recommended that each promotional message contains information for the voter/respondent that they can oppose further receipt of such messages at any time (for example, the sent message must include a link to unsubscribe from such messages or information on how to do so in another way). If the respondent or voter objects to receiving messages, the political party must no longer send them.

However, if a political party addresses a voter who has not given consent for the processing of personal data for these purposes or if the voter is neither a member nor a supporter of that party or has not provided their personal data to that political party, the legal basis under Article 6 of the General Data Protection Regulation for the mentioned processing of personal data by the political party/candidate is not evident.

If citizens receive a message from a political party and are not a member or supporter of it, nor have they shared their email or mobile number with it, they have the right to request access to their personal data from the political party (as the data controller), including information about the source of their personal data. The data controller must respond to the request without undue delay and no later than within one month.

Furthermore, political parties and candidates are obliged to inform citizens about the processing of their personal data in a transparent, clear, and concise manner, in accordance with Articles 13 and 14 of the General Data Protection Regulation. The information must be easily accessible, for example, on the party's website, leaflets, and similar materials, and voters must have the opportunity at all times to access all relevant information about the processing of their personal data (what is the legal basis for processing, what personal data is collected, how long it is retained, who the potential recipients of that data are, etc.), and we also encourage voters to inform themselves about all their rights that they are

entitled to under the General Data Protection Regulation. More about rights at <https://azop.hr/prava-ispitanika/>

The Agency recommends that all political parties, candidates, and other participants in electoral campaigning address citizens/voters in ways that do not necessarily involve the processing of their personal data (for example, through public media, public forums, distributing non-personalized leaflets, brochures, and other materials in which they present and explain their program).

We appeal to political parties/candidates to process (collect, store, provide access to, etc.) the personal data of party members, supporters, or voters in accordance with the legislative framework for the protection of personal data and emphasize that in the event of a determination of a violation of the provisions of the General Data Protection Regulation, the Agency is authorized to impose corrective measures (e.g., issue an official warning, restriction, or prohibition of processing, etc.), the most severe of which is an administrative monetary fine.

Finally, in accordance with Article 34 of the Law on the Implementation of the General Data Protection Regulation (NN 42/18), anyone who believes that their rights guaranteed by the General Data Protection Regulation and the Law on the Implementation of the General Data Protection Regulation have been violated may submit a request to the Agency for the determination of a rights violation <https://azop.hr/zahtjev-za-utvrdivanje-povrede-prava/> (for example, if a voter has objected to a political party regarding the processing of their personal data for the purpose of sending promotional messages, and the political party has continued to send them, the voter can contact the Agency due to the violation of their rights).

Due to frequent inquiries about the legality of the public disclosure of candidates' personal data, we note that Article 18.

The Law on the Election of Members to the European Parliament from the Republic of Croatia (NN 92/10, 23/13, 143/13) stipulates that the State Election Commission shall, within 48 hours of the expiration of the deadline for the submission of lists for the election of members to the European Parliament, accept and publish in all daily newspapers in the Republic of Croatia and on Croatian Radio Television a consolidated list of all validly proposed lists along with the names and surnames of the candidates. The consolidated list contains the serial number and the name of each list, as well as the names and surnames of the candidates on the list. Party lists, or candidate lists of a group of voters, are entered on the consolidated list in alphabetical order of the full name of the political party, or of two or more political parties that proposed the candidate list, or in alphabetical order of the surnames of the candidates of the group of voters. If multiple political parties have proposed a joint list, it will be entered on the consolidated list according to the name of the first political party in the proposal.

Thus, the aforementioned provision of the Law is the legal basis for the processing and publication of personal data, specifically of the candidates, and they cannot object to the public disclosure of personal data, and their data may only be used for the purpose for which it was published.